

Mo. Anwar Ansari v. Purvanchal Vidhut Vitrana Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 16 October 2023 · 2023:AHC:199944-DB · WRIT - C No. 29358 of 2023 · **Writ disposed on consent; load representation to be decided within six weeks**

HEADNOTE

Writ for mandamus to enhance load from 3 KW to 6 KW, with additional security adjusted under clause 6.9 of the U.P. Electricity Supply Code, 2005, was disposed of on consent without examining merits. The petitioner may move a fresh representation within ten days; the competent authority is to hear stakeholders and decide it on merits expeditiously, preferably within six weeks.

FACTUAL SUMMARY

The petitioner, Mo. Anwar Ansari, approached the Allahabad High Court against Purvanchal Vidhut Vitrana Nigam Ltd. and another. He sought a mandamus directing enhancement of his electricity load from 3 KW to 6 KW forthwith, and adjustment of the required additional security deposit in his next bill with the benefit of clause 6.9 of the U.P. Electricity Supply Code, 2005. Counsel for the electricity department stated that a fresh application moved before the competent authority at the earliest would be considered expeditiously.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.9

Time-bound decision of a load-enhancement representation

HOLDING

On consent, and without examining the merits, the writ seeking enhancement of load from 3 KW to 6 KW with additional security adjusted in the next bill under clause 6.9 is disposed of. The petitioner may move a fresh representation before the licensee within ten days. The competent authority must hear persons having a stake and decide that representation on merits expeditiously, preferably within six weeks. ¶ 4

PRINCIPLE TAGS

clause-6.9-representation-time-bound-decision The clause 6.9 load-enhancement and additional-security grievance was not decided on merits. On consent the petitioner was left to move a fresh representation within ten days, which the competent authority must hear and decide expeditiously, preferably within six weeks. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO ENHANCEMENT OF LOAD FROM 3 KW TO 6 KW AND TO ADJUSTMENT OF ADDITIONAL SECURITY UNDER CLAUSE 6.9

The Court expressly did not advert to the merits and left the representation to the competent authority. ¶ 4